

Rijwan Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 April 2014 · WRIT - C No. 23151 of 2014 · **Writ disposed of; authority to decide application under s.126/cl.6.8**

HEADNOTE

Where a theft FIR had been lodged and the consumer sought a decision on reconnection and restoration (LMV-6 in place of LMV-2) together with assessment of charges, the High Court, without examining merits, held that the grievance was to be redressed by the competent authority under s.126 of the Electricity Act, 2003 read with cl.6.8 of the U.P. Electricity Supply Code, 2005, and directed that authority to decide the application within two months.

FACTUAL SUMMARY

Rijwan Ahmad approached the Allahabad High Court seeking a direction to decide his application for reconnection and restoration of electricity supply, with a contracted load under LMV-6 in place of LMV-2. An allegation of theft had been made against him and an FIR had already been lodged. Assessment of electricity charges was also required as part of that process. Counsel for the Electricity Department appeared. The Court did not examine the merits of the reconnection or assessment claim.

HOLDING-UNITS

INTERPLAY · EA2003::126

reconnection and assessment after theft FIR

HOLDING

A writ seeking a direction to decide an application for reconnection and restoration of supply (LMV-6 in place of LMV-2) and for assessment of charges, where a theft FIR has been lodged, is to be left to the competent authority under s.126 of the Electricity Act, 2003 read with cl.6.8 of the Supply Code; the Court will not go into the merits of that claim. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment Where a theft FIR had been lodged and the consumer sought a decision on reconnection and restoration (LMV-6 in place of LMV-2) together with assessment of charges, the High Court, without examining merits, held that the grievance was to be redressed by the competent authority under s.126 of the Electricity Act ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF RECONNECTION, RESTORATION, CHANGE OF LOAD FROM LMV-2 TO LMV-6, AND ASSESSMENT OF CHARGES

The Court expressly declined to examine the petitioner's claim and only directed the competent authority to decide the application. ¶ 1